

23NWCV01134 23NWCV01134

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-08

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Case Number: 23NWCV01134 Hearing Date: September 8, 2026 Dept: P

VAISA, SR., ET AL. v. DOLPHIN PLACE PARTNERS, LLC,
ET AL.

CASE NO.: 23NWCV01134

HEARING: 09/08/2026 @ 9:30 AM

#7

TENTATIVE ORDER

I.

Petitioner John Angelo Vaisa Sr.'s

Petition for Approval of Compromise of Claim for Minor Jacob Vaisa is CONTINUED
to September 24, 2026 at 9:30 AM in Dept. P.

II.

Petitioner is instructed to file the
omitted attachment prior to the continued hearing date.

Moving party to give notice.

Petitioner

John Angelo Vaisa Sr. (Petitioner) petitions for approval of compromise
of claim or action or disposition of proceeds for minor Jacob Vaisa (Claimant).

Background

On April 12, 2023, Plaintiffs John Angelo Vaisa Sr.; Erika Vaisa; Jesus Oswaldo Martinez And Stephanie Martinez, minors, by and through their Guardian Ad Litem, Erika Vaisa; and Jaylene Angela Vaisa and Jonathan Joseph Vaisa, minors, by and through their Guardian Ad Litem, John Angelo Vaisa Sr. (collectively, Plaintiffs) filed this habitability action against Defendants Dolphin Place Partners, LLC; Dashmesh K Chopra; Ivon Monteon; Leticia Lopez; and Does 1 through 30 (collectively, Defendants). On June 2, 2023, Plaintiffs filed the operative first amended complaint (FAC). The FAC alleges that Plaintiffs, as tenants of 8434 Tweedy Lane #102, Downey, State of California, 90240 (Subject Premises) notified Defendants, the owners and managers of the Subject Premises, of mold in their unit, to which Defendants failed to take sufficient action. (FAC, ¶¶ 9-16.) The FAC asserts four causes of action: (1) breach of the implied warranty of habitability; (2) negligent training and supervision; (3) violation of Civil Code § 1942.4; and (4) violation of the Unfair Competition Law [Bus. & Prof. Code, § 17200].

Legal Standard

A Petition for approval of compromise of claim or action or disposition of proceeds of judgment for minor or person with a disability must conform with Code of Civil Procedure section 372 and Probate Code sections 2504 and 3600 et seq. (Cal. Rules of Court, rule 7.950.) Such a petition “must be verified by the petitioner and must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise.” (Cal. Rules of Court, rule 7.950.) Moving papers should include the Petition of Guardian Ad Litem for Compromise of Disputed Claim of Minor or Person with Disability (Petition) on Form MC-350 and an Order Approving Compromise of Minor’s Claim (Order) Form MC-351.

Discussion

Petitioner, as Guardian ad Litem and father of Claimant, age three, petitions for approval or compromise of claim or disposition of proceeds for Claimant. Petitioner provides a Petition on Form MC-350, Proposed Order on Form MC-351, and Proposed Order to Deposit Funds in Blocked Account on Form-355. This Petition is unopposed.

Allocation

Defendants will pay \$25,000 to Claimant as part of a global

settlement to all Plaintiffs in the amount of \$410,000. (Pet., ¶ 10; Attach., 10c.) As reflected in Attachment 10c, the agreement was agreed to verbally in a mediation. Petitioner contends that Defendants have not provided a long-form agreement. (Pet., ¶ 10c.)

Petitioner is a Plaintiff in this action and will receive \$142,500. (Pet., ¶ 11b(5).) Claimant's mother will receive \$142,400, and the three other minor claimants will each receive \$25,000. (Pet., ¶ 11b(5).) Petitioner indicates that the reason for the allocation is so the parents can use their net recovery towards purchasing a family residence. (Attach., 11b(6).)

Claimant's net recovery will be \$20,000. (Pet., ¶ 15.)

Medical Expenses

The Petition does not claim any medical expenses. (Pet., ¶ 12a.) Petitioner represents that there are no statutory or contractual liens for payment of Claimant's medical expenses. (Pet., ¶ 12b(5).)

Attorney's Fees & Costs

The Petition seeks approval of \$5,000 in attorney's fees. (Pet., ¶ 13a; Attach., 13a.) This represents a 20% contingency fee that Plaintiffs' counsel charges for minors. (Golde Decl., ¶ 8.) Plaintiffs' counsel provides the retainer agreement, signed by Petitioner, in which Petitioner agreed to a 25% contingency fee. Thus, Plaintiffs' counsel voluntarily reduced the fee to 20% as to Claimant. (Golde Decl., ¶ 8; Attach., 17a.) The Petition does not seek costs. (Pet., ¶ 13b.)

Based on the declaration of counsel and information provided in this Petition, the Court finds this amount reasonable. (See Cal. Rules of Court, rule 7.955.)

Disposition of Settlement Funds

Petitioner requests that the proceeds be deposited in insured accounts in one or more financial institutions in this state, subject

to withdrawal only on authorization of the Court. (Pet., ¶ 18b(2).)

Here, Petitioner does not file an Attachment 18b(2) to name the specific financial institution. The Court acknowledges that Petitioner submits Form MC-355 which includes a financial institution, but this information is omitted from the Petition itself. (Cal. Rules of Court, rule 7.950 [Petition "must contain a full disclosure of all information that has any bearing upon the reasonableness of the...disposition."].)

Accordingly, this Petition is CONTINUED to September 24, 2026 at 9:30 AM in Dept. P to allow Petitioner to file the omitted attachment. Petitioner is instructed to file the omitted attachment prior to the continued hearing date.